belonging to the Other Backward Classes (OBCs) in all central higher educational institutions including the Indian Institutes of Technology (IITs) and the Indian Institutes of Management (IIMs). In April 2008, the Supreme Court upheld the validity of both, the Amendment Act and the OBC Quota Act. But, the Court directed the central government to exclude the 'creamy layer' (advanced sections) among the OBCs while implementing the law.

Table 8.3 Provisions of Article 15 (Prohibition of discrimination on grounds of religion, race, caste, sex or place of birth) at a Glance

Article No.	Subject Matter
15(1)	The State shall not discriminate against any citizen on grounds only of religion, race, caste, sex, place of birth or any of them.
15(2)	No citizen shall be subjected to any disability, liability, restriction or condition on grounds only of religion, race, caste, sex, place of birth or any of them with regard to the following: 1. access to shops, public restaurants, hotels and places of public entertainment; or 2. the use of walls, tanks, bathing ghats, roads and places of public resort maintained wholly or partly out of State funds or dedicated to the use of the general public.
15(3)	The State is not prevented from making any special provision for women and children.
15(4)	The State is not prevented from making any special provision for the advancement of any socially and educationally backwards classes or for the scheduled castes and scheduled tribes. This provision was added by the 1st Amendment Act, 1951.
15(5)	The State is not prevented from making any special provision for the advancement of any socially and educationally backwards classes or for the scheduled castes and the scheduled tribes regarding their admission to educational institutions. This also includes the private educational motivations, whether aided or unaided by the State, except the minority educational institutions. This provision was added by the 93rd Amendment Act, 2005.
15(6)	The State is not prevented from making the following: 1. any special provision for the advancement of any economically weaker sections; and 2. a provision for the reservation of upto 10% of seats for such sections in admission to educational institutions including private educational institutions, whether aided or unaided by the State (except the minority educational institutions). This provision was added by the 103rd Amendment Act, 2019.